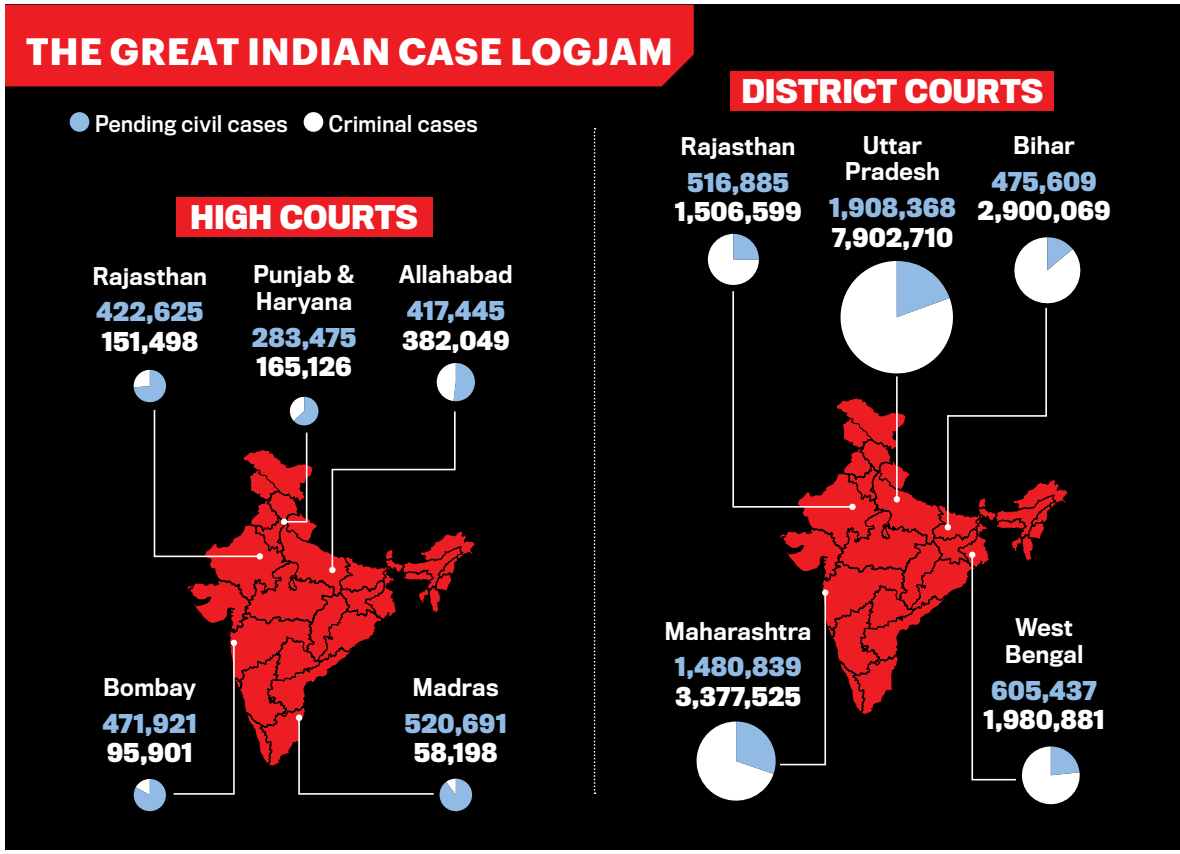


Graphic by TANMOY CHAKRABORTY

This experiment has miserably failed and requires urgent course correction. The present model of manning tribunals with retired judges and civil servants, who very often have no expert knowledge of the subject their tribunal deals with, has failed. The granting of limited tenure (five years), the absence of adequate infrastructure and lack of proper housing ensures that competent applicants seldom apply. The worst blow is that each tribunal is treated as a part of a ministry, rather than as an independent judicial tribunal. The hallmark of every tribunal in leading democracies is that they are as independent as courts of law. Sadly, the government does not realise that a robust and independent tribunal system will drastically improve India's image as a country where the rule of law prevails. The first and most important step is the creation of a National Tribunals Commission as recommended by the Supreme Court.

Vacancies in the tribunals are even worse than at the high courts. For example, all the five benches of the Debt Recovery Appellate Tribunal in the country are vacant. There is not a single functioning Debt Recovery Tribunal in New Delhi and Chandigarh. It is the same lamentable story in almost all tribunals. The inevitable result is the backlog of cases in the tribunals as well. And the absence of a tribunal leaves a litigant with no choice but to approach the high courts, which further compounds the problem.

FORK IN THE ROAD

In the Federalist Papers (No. 78), Alexander Hamilton emphasised the necessity of complete judicial independence. He presciently remarked that while liberty has nothing to fear from the judiciary alone, it has everything to fear from its union with either of the other departments. If we are to take our place as equals with the great western democracies, we must respect and nurture the institutional independence of our courts and tribunals. We have consistently neglected this area and each year's delay has deleterious consequences. Democracies that are intolerant or allergic to judicial independence have not only subverted the rule of law but stunted their economies as well—a lesson that we must learn from the path taken by Russia, Turkey and Poland. At the dawn of 2022, we are on a veritable fork in the road—which path to choose is our choice, the consequences thereafter are not. ■

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